

25AVCV01580 25AVCV01580

County: los-angeles

Division: Civil Law and Motion

Department: A14

Hearing date: 2026-09-22

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ATP%2CA14%2C09%2F22%2F2026

Source SHA-256: 89f3c52d1945c84401a1a53510de523d10fc4c32b219ef924468d6847c9250e0

Case Number: 25AVCV01580 Hearing Date: September 22, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

PATRICIA ISABEL SANCHEZ,

Plaintiff,

v.

CITY OF LOS ANGELES; COUNTY OF LOS ANGELES; CITY OF PALMDALE; BONNIE MCPHEARSON; ANNA ROMERO;
and DOES 1 through 50, inclusive,

Defendants.

Case Number 25AVCV01580

[TENTATIVE]

RULING ON MOTION

Date of Hearing: September 22, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a personal injury and premises liability action. Defendant City of Palmdale ("Defendant") moves to compel further responses from Plaintiff Patricia Isabel Sanchez ("Plaintiff") to its Special Interrogatories, Set Two.

On November 26, 2025, Plaintiff filed her form Complaint against Defendants City of Palmdale, the City of Los Angeles, the County of Los Angeles, Bonnie McPhearson, and Anna Romero, asserting one cause of action for Premises Liability. Plaintiff alleges that on April 4, 2025, she was walking on the sidewalk in the city of Palmdale when she tripped, fell, and sustained injuries.

On August 4, 2026, City of Palmdale filed its motion to compel further discovery responses from Plaintiff.

On September 9, 2026, Plaintiff filed her opposition.

On September 15, 2026, Defendant filed its reply.

II. Preliminary Procedural Issues

Meet and Confer Requirement – A motion to compel further responses must be accompanied by a meet and confer declaration showing "a reasonable and good faith attempt at an informal resolution of each issue presented by the motion." (Code Civ. Proc., §§ 2016.040, 2030.300, subd. (b)(1), 2031.310, subd. (b)(2).)

Defendant's counsel Susan S. Arnall provides her declaration, detailing the meet and confer efforts between the parties, including a telephone conversation, after which Plaintiff's counsel agreed to provide further responses. (Arnall Decl., ¶¶ 5-13.) This requirement is satisfied.

III. Legal Standard

Standard for Motions to Compel Further Discovery Responses - Interrogatories – In responding to a set of interrogatories, a party must provide one of the following: (1) an answer "containing the information sought to be discovered"; (2) "an exercise of the party's option to produce writings"; or (3) an objection to the particular interrogatory. (Code Civ. Proc., § 2030.210, subd. (a).) Each answer to an interrogatory "shall be as complete and straightforward as the information reasonably available to the responding party permits." (Code Civ. Proc. § 2030.220, subd. (a).) If any objections are made, "the specific ground for the objection shall be set forth clearly in the response." (Code Civ. Proc., § 2030.240, subd. (b).)

Upon receipt of responses to interrogatories, the propounding party may move for an order compelling further responses if they deem the responses to be "evasive or incomplete" or if "[a]n objection to an interrogatory is without merit or too general." (Code Civ. Proc., §§ 2030.300(a)(1), (a)(3).) The motion must also be accompanied by a separate statement containing the text of the interrogatories at issue, the text of each response at issue, and a statement of the reasons why a further response is required, though the court may permit a party to submit "a concise outline of the discovery request and each response in dispute" in lieu of a separate statement. (Code Civ. Proc., § 2030.300, subd. (b)(2); Cal. Rules of Court, rule 3.1345.)

A motion to compel further response lies where the party to whom the interrogatories were directed gave responses deemed improper by the propounding party; e.g., objections, or evasive or incomplete answers. (Code Civ. Proc., § 2030.300.) Unlike a motion to compel further responses to a request for production, there is no “good cause” requirement applicable to a motion to compel further responses to interrogatories. “The ruling usually is based on consideration of the following factors: the relationship of the information sought to the issues framed in the pleadings; the likelihood that disclosure will be of practical benefit to the party seeking discovery; the burden or expense likely to be encountered by the responding party in furnishing the information sought.” (Weil, et al., Cal. Prac. Guide, Civil Procedure Before Trial, Ch. 8F-7, ¶ 8:1181; see also *Columbia Broadcasting System, Inc v. Superior Court* (1968) 263 Cal.App.2d 12, 18–19 [“In deciding a motion under [former] section 2030 the trial court must, of necessity, consider not only the stated objections to the interrogatories, but also the interrogatories themselves, as well as the pleadings, and the contentions of the interrogating party as to the purpose and validity of the interrogatories. If the interrogatories stray too far and seek information which cannot reasonably serve the acknowledged purposes of pretrial discovery, the motion should be denied.”].) If a timely motion to compel has been filed, the burden is on the responding party to justify any objection or failure to fully answer. (*Coy v. Superior Court of Contra Costa County* (1962) 58 Cal.2d 210, 220–221.)

If a party fails to serve a timely response to interrogatories, the party waives the right to exercise the option to produce writings under Section 2030.230 and waives any objection to the demand, including objections based on privilege or work product. (Code Civ. Proc., § 2030.290, subd. (a).) The Court may relieve a party of this waiver only if the party has subsequently served a substantially code-compliant response and the party’s failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., § 2030.290, subd. (a)(1)-(2).)

IV. Discussion

Application – Defendant moves to compel further responses to Special Interrogatories, Set Two from Plaintiff pursuant to Code of Civil Procedure section 2030.300 and California Rules of Court rule 3.1345 on the grounds that Plaintiff’s responses are not as complete and straightforward as required.

Defendant served Plaintiff with its Special Interrogatories, Set Two on May 19, 2026, and Plaintiff served her response on June 23, 2026. (Arnall Decl., ¶¶ 3-4.) On July 24, 2026, counsel for the parties conferred, and Plaintiff’s counsel agreed to provide further code-compliant responses by July 31, 2026, but did not do so. (Arnall Decl., ¶¶ 11-12.) At issue are Interrogatory Nos. 44, 45, and 46. Defendant argues Plaintiff’s responses to these objections consisted of boilerplate objections without merit, and that the responses are not code-compliant.

Interrogatory No. 44 reads: “Do YOU contend that the LIFTED PIECE OF CONCRETE was located at a seam between two adjacent concrete sidewalk panels on the date of the INCIDENT?”

Interrogatory No. 45 reads: “If YOU contend that the LIFTED PIECE OF CONCRETE was located at a seam between two adjacent concrete sidewalk panels, state the HEIGHT DIFFERENTIAL, in inches, between the LIFTED PIECE OF CONCRETE and the lower, adjacent concrete sidewalk panel on the date of the INCIDENT.”

Interrogatory No. 46 reads: “If the LIFTED PIECE OF CONCRETE was located at a seam between two adjacent concrete sidewalk panels, state the HEIGHT DIFFERENTIAL between those two adjacent concrete sidewalk panels that constituted the DANGEROUS CONDITION OF PUBLIC PROPERTY.”

The terms “lifted piece of concrete,” “height differential,” and “dangerous condition of public property” are defined.

Plaintiff objected on the grounds that the interrogatories are vague, ambiguous, oppressive, harassing, burdensome, seek Plaintiff’s counsel’s legal analysis, invade the attorney’s work product privilege, call for an expert opinion, call for improper lay

witness opinion, call for speculation, and violate Code of Civil Procedure, Section 2030.060(d). Plaintiff further responded that as to Interrogatory Nos. 44 and 45, she was unable to make such a contention at the time of response, and as to all three Interrogatories, deferred to her experts' opinions, and states that discovery and investigations are continuing and ongoing.

Defendant argues these interrogatories are authorized, straightforward, and address specific allegations in Plaintiff's complaint, while her responses were evasive, ambiguous, and not code-compliant.

In opposition, Plaintiff argues that no further response should be required, as the Interrogatories seek retrospective technical opinions regarding the sidewalk's historical configuration and precise measurements to be rendered by Plaintiff, a lay witness, based on her personal firsthand knowledge that she encountered lifted concrete. (Opp., p. 3:9-13.) Plaintiff argues that a forced "yes" or "no" answer would require Plaintiff to guess at a technical classification, and that a forced, unqualified statement that Plaintiff "does not know" would be misleading and risks portraying her response as an admission that she does not know what condition caused her fall and subsequent injury. (Opp., p. 4:3-6.)

"An interrogatory may relate to whether another party is making a certain contention, or to the facts, witnesses, and writings on which a contention is based," but an interrogatory "is not objectionable because an answer to it involves an opinion or contention that relates to fact or the application of law to fact, or would be based on information obtained or legal theories developed in anticipation of litigation or in preparation for trial." (Code Civ. Proc., § 2030.010, subd. (b).) Moreover, "[a] party may not deliberately misconstrue a question for the purpose of supplying an evasive answer," and "where the question is somewhat ambiguous, but the nature of the information sought is apparent, the proper solution is to provide an appropriate response." (Deyo v. Kilbourne (1978) 84 Cal.App.3d 771, 783.)

Answers to interrogatories must be as complete and straightforward as the information reasonably available to the responding party permits, shall be answered to the extent possible if it cannot be answered in full, and if the responding party does not have personal knowledge sufficient to respond fully, that party must state as much after making a reasonable and good faith effort to obtain the information by inquiry to other natural persons except where the information is equally available to the propounding party. (Code Civ. Proc., § 2030.220.) If a party can provide partial answers, the answers must be provided and must reveal "all information then available to the party." (Deyo, supra, 84 Cal.App.3d at 782.) "If a person cannot furnish details, he should set forth the efforts made to secure the information," and "cannot plead ignorance to information which can be obtained from sources under his control." (Ibid.)

Here, Plaintiff's responses that she cannot make the requested contention and defers to her experts are insufficient. Interrogatory No. 44 asks whether Plaintiff contends the lifted concrete was at a seam between two adjacent sidewalk panels, which Plaintiff argues embeds a technical premise, as Defendant does not define the phrase or specify whether "seam" refers to a formed construction joint, expansion or control joint, visible scoring line, crack, or some other interface. While the term "seam between two adjacent concrete sidewalk panels" may present some ambiguity in the technical sense, in light of the images referenced in the Interrogatories and the common understanding of the phrase, the information sought by Interrogatory No. 44 is apparent, and Plaintiff cannot evade providing an appropriate response based on personal knowledge and information available to her based on the limitless technical interpretations one could impose on the word "seam." Plaintiff herself concedes that a pedestrian can perceive and identify raised or lifted concrete surface. (Opp., p. 6:8-9.) It is based in part on this perception and identification that Plaintiff must respond, and as Defendant asserts, the Interrogatory is not asking for a technical evaluation, determination of the boundary between constructed sidewalk panels, or specialized knowledge.

Therefore, the Court finds that the information requested is clear enough that the objections based on vagueness and ambiguity are not warranted. If Plaintiff has a contention one way or the other, she must provide it. If, after reasonable inquiry, Plaintiff maintains that she has insufficient information to formulate any contention regarding the lifted concrete on the date of the incident, or if any such contention is solely based on her expert(s) reports, measurements, technical analysis, opinion, and inspection, Plaintiff may so state, but her present response is nonetheless inadequate, as she still must affirm that a reasonable and good faith effort was made to obtain the information and set forth the efforts made to secure the information. She has not done so, and the Court therefore agrees that further response is required.

The same is true as to Interrogatory Nos. 45 and 46, Defendant requests that Plaintiff state a precise measurement - the height differential between the lifted and non-lifted portions of concrete on the date of the incident. If Plaintiff does not have this information or otherwise only has information contained in currently protected expert reports and writings, she must still affirm that a reasonable and good faith effort was made to obtain the information and set forth the efforts made to secure the information in addition to asserting her objections.

Accordingly, Defendant's motion is GRANTED, and Plaintiff shall provide code-compliant responses to Interrogatory Nos. 44-46.

Sanctions – "The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both." (Code Civ. Proc., § 2023.030, subd. (a).)

Defendant requests sanctions in the amount of \$3,465.00, consisting of 1.5 hours engaging in meet and confer efforts, 2.5 hours preparing the motion, 1.0 hour preparing the separate statement, and an anticipated 3.0 hours for preparing and attending the hearing on the motion, for a total of 11.0 hours of work at \$315/hour. (Arnall Decl., ¶ 14.)

Here, the Court finds that sanctions are not warranted. While Plaintiff's responses are not code-compliant, as discussed above, the Court also finds that they are not necessarily evasive. Defendant requests specific measurements, in inches, from April 4, 2025, and Plaintiff's contentions regarding the location of lifted concrete. It is not apparent here that Plaintiff is lodging boilerplate objections without reasonable basis. Moreover, Plaintiff's responses, while they do not assert that reasonable inquiry has been made or state what efforts were made to secure the information aside from retained expert evaluation, inspection, and measurements, do state that Plaintiff cannot make the requested contention, and that the contention is based on her retained experts' findings, which will be disclosed as and when required. Moreover, it appears the parties engaged in good faith meet and confer efforts, and while Plaintiff's counsel failed to provide supplemental responses, Plaintiff's three deficient responses do not rise to the level of misuse of the discovery process warranting the requested sanctions.

Accordingly, the Court declines to award monetary sanctions at this time, and Defendant's request is DENIED.

V. Conclusion

Defendant City of Palmdale's Motion to Compel Further Responses to Special Interrogatories, Set Two is GRANTED. Plaintiff shall provide code-compliant responses to Interrogatory Nos. 44, 45, and 46 within ten (10) days of this Order.

Defendant's Request for Monetary Sanctions is DENIED.